

BEFORE THE FEDERAL MARITIME COMMISSION

Washington, D.C.

Docket No. 25-15

RESPONDENT'S VERIFIED ANSWER

Respondent Wallenius Wilhelmsen Ocean AS (“Respondent”), by and through its attorneys, Clyde & Co US LLP, answering the Verified Complaint (the “Complaint”) of Worldwide Nexus Logistics LLC (“Complainant”), states upon information and belief as follows:

I. PARTIES

1. Denies knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph 1 of the Complaint.

2. Admits that Respondent is a common carrier as defined by 46 U.S.C. § 40102(7), but denies each and every other allegation in Paragraph 2 of the Complaint.

II. JURISDICTION

3. Denies each and every allegation in Paragraph 3 of the Complaint.

4. Denies each and every allegation in Paragraph 4 of the Complaint.

III. FACTUAL BACKGROUND

5. Denies knowledge or information sufficient to form a belief as to the truth of each and every allegation in paragraph 5 of the Complaint, except admits that Complainant booked cargo for shipment from Brunswick, GA and Galveston, TX to San Antonio, Chile, pursuant to contract number NASA23-003.

6. Denies knowledge or information sufficient to form a belief as to the truth of each and every allegation in paragraph 6 of the Complaint, except admits that the cargo was routed through Peruvian territory.

7. Denies each and every allegation in Paragraph 7 of the Complaint.
8. Denies each and every allegation in Paragraph 8 of the Complaint.
9. Denies each and every allegation in Paragraph 9 of the Complaint.
10. Denies each and every allegation in Paragraph 10 of the Complaint.
- 10A. Denies each and every allegation in Paragraph 10A of the Complaint.

IV. CLAIM FOR RELIEF

11. Denies each and every allegation in Paragraph 11 of the Complaint.
12. Denies each and every allegation in Paragraph 12 of the Complaint.

V. PRAYER FOR RELIEF

13. Denies each and every allegation that Complainant is entitled to any of the relief requested in Paragraphs A – D of the Prayer for Relief in the Complaint.

FIRST AFFIRMATIVE DEFENSE

14. The Federal Maritime Commission lacks personal jurisdiction over Respondent.

SECOND AFFIRMATIVE DEFENSE

15. Complainant is not the real party in interest.

THIRD AFFIRMATIVE DEFENSE

16. If Complainant suffered any loss as alleged by it, such loss was caused and/or brought about in whole or in part by its own negligence and/or breach of duty and/or by negligence and/or breach of duty of others for whose negligence and/or breach of duty Respondent is not liable.

FOURTH AFFIRMATIVE DEFENSE

17. Complainant's cause of action is time barred by the applicable period of limitation or is barred by the doctrine of laches and Respondent has been prejudiced thereby.

FIFTH AFFIRMATIVE DEFENSE

18. Complainant has failed to join all necessary and indispensable parties.

SIXTH AFFIRMATIVE DEFENSE

19. Complainant has failed to mitigate its alleged damages and any recovery by Complainant should be reduced by an appropriate amount.

SEVENTH AFFIRMATIVE DEFENSE

20. The incident alleged in the Complaint and any injuries, damages, or expenses which may have arisen therefrom were occasioned without the privity or knowledge of Respondent; Respondent claims the benefit of any applicable limitation of liability provided in the Limitation of Liability Act of 1851 (codified at 46 U.S.C. §§ 30501–30512) and the acts amendatory thereof and supplemental thereto.

EIGHTH AFFIRMATIVE DEFENSE

21. To the extent Complainant seeks consequential damages, such damages are not recoverable herein.

NINTH AFFIRMATIVE DEFENSE

22. If the damages alleged by Complainant in the Complaint were caused or contributed to, in whole or in part, by any fault, neglect, assumption of risk or want of care, on the part of Complainant itself, then, and in such an event, any recovery and/or right of recovery herein by Complainant, which recovery and/or right of recovery are/is specifically denied, shall be mitigated or lessened in such proportions as any fault on the part of Complainant may have contributed to the totality of the causation of its alleged injuries and damages.

TENTH AFFIRMATIVE DEFENSE

23. The rights and obligations of the parties are governed by the valid terms and conditions of one or more contracts, including but not limited to all limitations and/or exclusions of liability therein.

ELEVENTH AFFIRMATIVE DEFENSE

24. The Complaint fails to state a claim upon which relief can be granted.

TWELFTH AFFIRMATIVE DEFENSE

25. The subject shipment is subject to the Carriage of Goods by Sea Act (“COGSA”), Pub. L. No. 74-521, 49 Stat. 1207 (1936) (codified as a note to 46 U.S.C. § 30701), and/or other applicable treaties, conventions, statutes, and/or regulations which limit or bar any liability of the Respondent.

THIRTEENTH AFFIRMATIVE DEFENSE

26. Any liability of the Respondent is limited to \$500 per package or customary freight unit under § 4(5) of COGSA or the applicable bill of lading.

FOURTEENTH AFFIRMATIVE DEFENSE

27. Any alleged damages were not caused by any act or omission of Respondent.

FIFTEENTH AFFIRMATIVE DEFENSE

28. Any alleged harm was caused, in whole or in part, by the acts or omissions of Complainant.

SIXTEENTH AFFIRMATIVE DEFENSE

29. Any alleged harm was caused by third parties over whom Respondent exercised no control and for whose conduct Respondent bears no responsibility.

SEVENTEENTH AFFIRMATIVE DEFENSE

30. Complainant is estopped from asserting the claims alleged in the Complaint by virtue of its own conduct, representations, or omissions.

EIGHTEENTH AFFIRMATIVE DEFENSE

31. Complainant has waived its claims through conduct inconsistent with the assertion of rights.

NINETEENTH AFFIRMATIVE DEFENSE

32. Complainant's claims are barred, in whole or in part, by applicable statutes of limitation, including but not limited to 46 U.S.C. § 41301 and any contractual time limits contained in the bill of lading or applicable under COGSA or the contract of carriage.

TWENTIETH AFFIRMATIVE DEFENSE

33. The Complaint was not properly served in accordance with the procedural rules of the Federal Maritime Commission.

TWENTY-FIRST AFFIRMATIVE DEFENSE

34. To the extent the Complaint asserts claims governed by COGSA, such claims fall outside the jurisdiction of the Federal Maritime Commission.

TWENTY-SECOND AFFIRMATIVE DEFENSE

35. The Federal Maritime Commission lacks jurisdiction over the subject matter of the Complaint to the extent that the claims sound in contract or arise under private commercial agreements.

TWENTY-THIRD AFFIRMATIVE DEFENSE

36. Complainant's claims may be barred, in whole or in part, by prior resolution, settlement, or accord and satisfaction.

TWENTY-FOURTH AFFIRMATIVE DEFENSE

37. Any claims relating to loss, damage or non-delivery of cargo are subject to the exclusive jurisdiction of the United States District Court for the Southern District of New York, pursuant to the terms of the applicable contract of carriage.

TWENTY-FIFTH AFFIRMATIVE DEFENSE

38. Respondent reserves the right to assert additional defenses as may be revealed through discovery, investigation, or further factual development.

REQUEST FOR ORAL HEARING: Respondent considers that an oral hearing, including cross-examination, is necessary and appropriate and respectfully requests that such hearing be held in Washington, DC.

Dated: New York, New York
August 25, 2025

CLYDE & CO US LLP

By: /s/ John R. Keough

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*Attorneys for Respondent
Wallenius Wilhelmsen Ocean AS*

CERTIFICATE OF SERVICE

I certify that, on August 25, 2025, a true and correct copy of the foregoing Answer was filed via electronic mail with the Secretary of the Federal Maritime Commission and a copy was served via electronic mail on the following parties:

Jean C. Lopez

Jean.lopez@worldwidenexus.com

Managing Director and Owner, Worldwide Nexus Logistics, LLC

Dated: New York, New York
August 25, 2025

By: /s/ John R. Keough

John R. Keough